

#	Case Name	Tentative
1	Maddah vs. Luo 2024-01437781	Demurrer to Complaint Defendant Lilia Luo’s Demurrer is SUSTAINED with 20 days leave to amend. Luo is named in the caption of the Complaint as the sole Defendant. However, Plaintiffs allege Creative Dynasty Estate is the landlord of the premises they are occupying. Further, Plaintiffs define “Defendant” as referring to Creative Dynasty Estate and all allegations are directed to “Defendant”. Luo is not mentioned in the body of the Complaint. Therefore, Plaintiffs have failed to allege any claims against Luo and the Demurrer must be sustained. Leave to amend should be liberally granted unless the complaint shows on its face that it is unable to be amended. (<i>City of Stockton v. Superior Court</i> (2007) 42 Cal.4th 730, 747.) It is not evident from the face of the Complaint that no cause of action can be alleged against Luo. Thus, leave to amend is granted.
2	Martinez vs. Rosenberg 2024-01435685	Demurrer to Complaint The general demurrer of defendant Gary Rosenberg, D.O., to the third cause of action in the complaint of plaintiffs Kristina Martinez and Benjamin Smith is SUSTAINED with 20 days’ leave to amend. Defendant Gary Rosenberg, D.O., demurs generally to the third cause of action for fraudulent concealment. The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. <u>Hambrick v. Healthcare Partners Medical Group, Inc.</u> (2015) 238 Cal.App.4th 124, 162. Fraud must be pleaded with specificity, to provide the defendants with the fullest possible details of the charge so they are able to prepare a defense to this serious attack.